

The examination is being carried out on the **following application documents**

**Description, Pages**

1-275 as published

**Claims, Numbers**

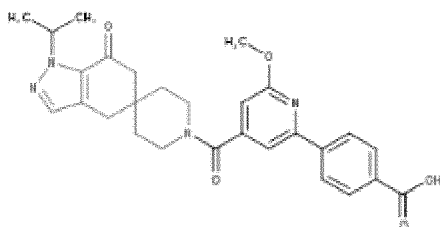
1-19 filed with entry into the regional phase before the EPO

**Drawings, Sheets**

1/25-25/25 as published

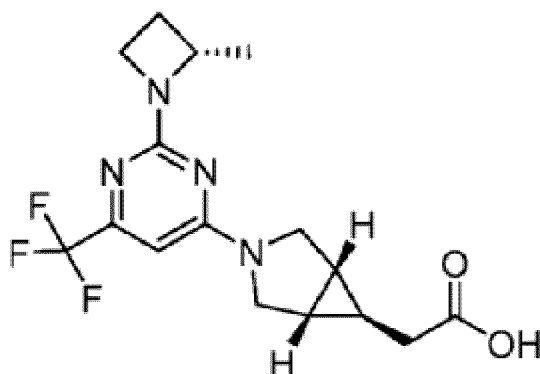
- 1 The present set of claims contains 4 independent claims, formulated according to Art. 54(5) EPC as follows:

Independent claim 1 relates to a combination comprising (1) a GLP-1R agonist as listed therein and an ACCi inhibitor of the following formula



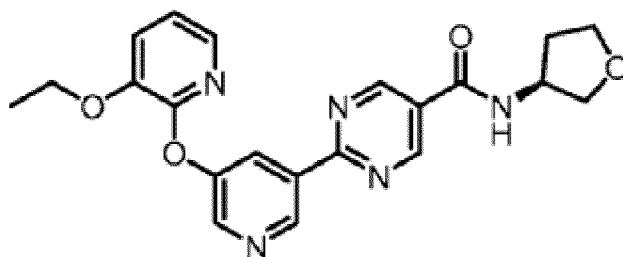
for use in the treatment of a disease or condition is selected from fatty liver, nonalcoholic steatohepatitis with liver fibrosis, nonalcoholic steatohepatitis with cirrhosis, and nonalcoholic steatohepatitis with cirrhosis and with hepatocellular carcinoma or with a metabolic-related disease.

Independent claim 5 relates to a combination comprising (1) a GLP-1R agonist as listed therein and a KHKi inhibitor of the following formula



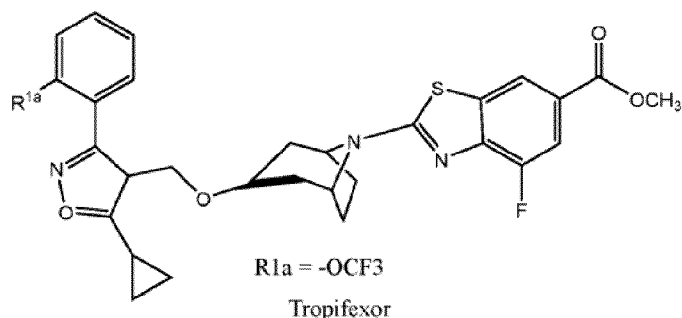
for use in the treatment of a disease or condition is selected from fatty liver, nonalcoholic steatohepatitis with liver fibrosis, nonalcoholic steatohepatitis with cirrhosis, and nonalcoholic steatohepatitis with cirrhosis and with hepatocellular carcinoma or with a metabolic-related disease.

Independent claim 9 relates to a combination comprising (1) a GLP-1R agonist as listed therein and a DGA2i inhibitor of the following formula



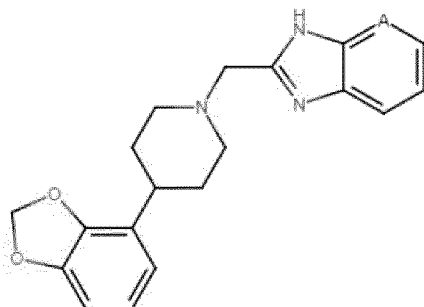
for use in the treatment of a disease or condition is selected from fatty liver, nonalcoholic steatohepatitis with liver fibrosis, nonalcoholic steatohepatitis with cirrhosis, and nonalcoholic steatohepatitis with cirrhosis and with hepatocellular carcinoma or with a metabolic-related disease.

Independent claim 16 relates to a combination comprising (1) a GLP-1R agonist as listed therein and a FXRa inhibitor of the following formula,



, named tropifexor, for use in the treatment of a disease or condition is selected from fatty liver, nonalcoholic steatohepatitis with liver fibrosis, nonalcoholic steatohepatitis with cirrhosis, and nonalcoholic steatohepatitis with cirrhosis and with hepatocellular carcinoma or with a metabolic-related disease.

As a note, the compounds defined as GLP-1R agonist in the above claims have this core structure:



wherein A is N or C.

2 With its letter dated 18.11.2021, the applicant indicated that claim 14 has for basis claim 71 as originally filed, however the feature "tris salt" is missing. At present the wording of claim 14 is considered unclear.

3 Priority/D1

The present priority document US62/850,133 filed on 20.05.2019 supports the subject-matter of the present claims.

Document D1 (WO2019239319, linked to EP4219487), filed by the same applicant and claiming two priorities before 20.05.2019 (present priority date), discloses the present claimed GLP-1R agonists: see examples 1-102 of D1 are identical to those disclosed in the present application. In addition, D1 discloses

their combination with the claimed ACC inhibitor, DGAT2 inhibitor, KHK inhibitor and FXR agonist (see lines 3-37 of page 36). The disclosure of these combinations is made in the context of NASH.

It is to be noted that two earliest priorities do not specifically disclose the claimed diseases fatty liver, nonalcoholic steatohepatitis with liver fibrosis, nonalcoholic steatohepatitis with cirrhosis, and nonalcoholic steatohepatitis with cirrhosis and with hepatocellular carcinoma or with a metabolic-related disease. Therewith, the present priority is not invalidated.

However, the earlier priority US62/846,944 date 13.05.2019 disclose specifically the present combinations for use in the treatment of NASH. Said diseases fall within the broader term "fatty liver". Thus anticipating the subject-matter of the present claims.

Deleting the term "fatty liver" would overcome the objection.

- 4 Provided that the objections under points 2-3 above have been overcome, the newly filed claims are considered to be allowable. The applicant is therefore requested to bring the description into conformity with these claims; care should be taken during revision, especially of the introductory portion including any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed (Article 123(2) EPC).

Wordings such as "the present invention" or "the compounds/use/process/method of the invention" should only be used when relating to subject-matter which is actually claimed.

According to Rule 42(1)(c) EPC the description must disclose the invention as claimed and non-claimed embodiments can remain only when this is clearly indicated, e.g. "comparative examples", and only if they serve the purpose of clarifying the invention (see F-IV. 4.3(iii) in the Guidelines).

Subject-matter in the description being excluded from patentability under Article 53 EPC needs to be excised, reworded such that it does not fall under the exceptions to patentability or prominently marked as not being according to the claimed invention.

Any statements of the general form "incorporated by reference" should be deleted (see Guidelines F-III, 8). For example lines 10-11 and 15 on page 3, lines 12 on page 5, line 20 on pages 6 and 8, lines 6-7 on page 9 of the application as originally filed

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Anmelde-Nr:  
Application No: 20 726 962.2  
Demande n°:

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To meet the requirements of R. 42(1)(b) EPC, D1-D2 should be identified in the description and the relevant background disclosed therein should be briefly discussed (see Guidelines F-II 4.3).